Indian Citizenship: Applicant's Legal & Procedural Guide

Eligibility • Application • Documents • Verification • Rights • Loss of Citizenship • Remedies

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Plain-language legal reference. Verify the current official text, rules, notifications and case status before relying on this guide for an application or legal proceeding.

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Important note on use

> This guide is an applicant-oriented explanation of the Indian citizenship framework. It is not a substitute for the current Citizenship Act, Citizenship Rules, Gazette notifications, MHA instructions, or professional legal advice. Citizenship law is highly date-sensitive: the legal result can depend on the applicant's date of birth, parents' status, immigration status, residence history, and the law in force at the relevant time.

As of 28 September 2026, MHA's Foreigners Division lists the Citizenship Act, 1955, the Citizenship Rules, 2009, the Citizenship (Amendment) Rules, 2024, and the Citizenship (Third Amendment) Rules, 2026. MHA also lists the August 2026 Section 6B order affecting applications in specified States and Union Territories. This guide therefore treats the 2026 position as the current reference point, while noting historical rules where they matter to older facts.

Primary official sources:

- MHA Foreigners Division — Acts and Rules
- India Code — Citizenship Act, 1955
- MHA — Citizenship Rules, 2009
- MHA — OCI information

Part I — Start Here

1. The five general acquisition routes

The Citizenship Act, 1955 provides the main statutory routes through Sections 3 to 7: birth, descent, registration, naturalisation and incorporation of territory. Sections 6A and 6B create special statutory frameworks for specified categories. OCI is a separate statutory status and is not itself Indian citizenship.

Route	Where to look	Typical applicant question
Birth	Section 3	Was I already a citizen because I was born in India?
Descent	Section 4	Was I a citizen because an Indian parent was a citizen when I was born abroad?
Registration	Section 5	Do I qualify for citizenship because of Indian origin, marriage, former citizenship, parentage or
Naturalisation	Section 6 + Third Schedule	Can I obtain citizenship after satisfying the statutory residence and other conditions?
Incorporation of territory	Section 7	Did a territory become part of India and does a notification cover me?
Special Section 6B route	Section 6B + Rules/Orders	Do I fall within the special category created by the Citizenship Amendment Act framework?

2. The first applicant decision tree

1. Establish whether you are already an Indian citizen under birth, descent or another provision. Do not assume that possession or absence of an Indian passport itself creates citizenship.
2. If you are not already a citizen, identify the statutory route: registration, naturalisation, or a special provision such as Section 6B where applicable.
3. Check exclusions before preparing the application. Illegal-migrant provisions, foreign-citizenship rules, document deficiencies and category-specific conditions can change the result.
4. Build evidence around the legal test. Collect documents that prove the facts the statute or rules actually require.
5. Submit the correct form through the current government process and preserve the acknowledgement and every uploaded document.
6. Expect verification or inquiry where the applicable process requires it. A citizenship certificate is not issued merely because an applicant submits a form.
7. If delayed or rejected, identify the legal reason first. Then use the appropriate administrative or judicial remedy.

3. The core distinction: citizenship, OCI, visa and residence

Status	Basic meaning	Indian citizenship?
Indian citizen	Person recognized as an Indian citizen under the Constitution/statute	Yes
Foreign national	Person who is not an Indian citizen	No
Visa/immigration status	Permission/status governing entry or stay; it does not itself confer citizenship	No
OCI Cardholder	Statutory overseas status with specified privileges; expressly not equivalent to citizenship	No

Part II — Constitutional and Statutory Foundation

4. Constitution of India: Articles 5–11

Part II of the Constitution contains the original constitutional framework on citizenship at the commencement of the Constitution. Articles 5–8 address citizenship in different historical circumstances, Article 9 addresses voluntary acquisition of foreign citizenship, Article 10 provides for continuance subject to parliamentary law, and Article 11 expressly preserves Parliament's power to regulate acquisition, termination and related matters.

For an applicant today, Article 11 is particularly important because the Citizenship Act, 1955 is the principal modern statutory framework for acquisition and termination.

5. Citizenship Act, 1955 — structure

Sections	Subject
2	Definitions and interpretation
3–7	Acquisition: birth, descent, registration, naturalisation, incorporation of territory
7A–7D	OCI framework
8–10	Renunciation, termination, deprivation
13–17	Certificate of citizenship, applications, revision/review, delegation and offences
18	Rule-making power

6. Illegal migrant definition

Section 2(1)(b) defines an illegal migrant in terms of entry without required travel documents/authority or remaining beyond the permitted period. The Citizenship Act then uses that concept in eligibility provisions. The CAA framework creates specific statutory exceptions for the persons covered by its proviso and Section 6B; those exceptions must be applied exactly as written.

7. Date-sensitive citizenship law

> Do not apply today's Section 3 mechanically to a person born decades earlier. Citizenship by birth has changed through amendments, so the date of birth and the citizenship/immigration status of the parents at the relevant time must be checked against the version of the law then applicable.

Part III — Citizenship by Birth

8. Section 3 framework

Section 3 governs citizenship by birth in India. The operative test differs by period. Broadly, the statute distinguishes people born before 1 July 1987, people born on or after that date but before commencement of the 2003 amendment, and people born after commencement of the 2003 amendment. The current text also imposes parent-status conditions and exceptions.

9. Applicant evidence

- Birth certificate or other authoritative birth record showing place and date of birth.
- Evidence concerning the parents' citizenship/immigration status where the relevant version of Section 3 requires it.
- Identity documents connecting the applicant to the birth record.
- Evidence resolving discrepancies in name, date or parentage.

10. Common mistakes

- Assuming birth in India always means citizenship, regardless of date and parental status.
- Using an Aadhaar, voter ID or other identity document as the sole proof of citizenship when the legal issue itself is citizenship.
- Ignoring the illegal-migrant condition introduced into the modern statutory framework.
- Failing to distinguish citizenship from entitlement to an Indian passport.

11. Passport consequences

Where a person establishes citizenship by birth, passport authorities must still apply the Passport Act and passport procedures. Courts have considered disputes where people born in India claimed citizenship under Section 3 and sought passports; see the case-law handbook.

Part IV — Citizenship by Descent

12. Section 4 framework

Section 4 addresses persons born outside India. The applicable statutory requirements have changed over time, including changes concerning which parent can transmit citizenship and overseas registration requirements. The applicant must therefore identify the law applicable on the date of birth and satisfy the relevant registration/evidence conditions.

13. Typical evidence

- Foreign birth certificate.
- Indian parent's citizenship evidence.
- Parent's Indian passport or citizenship certificate where applicable.
- Marriage/parentage evidence where needed.
- Registration of birth at an Indian consulate where the applicable law requires it.
- Evidence concerning any later acquisition of foreign citizenship.

14. Special caution: foreign passport and Section 9

A person born abroad can have a citizenship-by-descent claim while also facing questions about foreign citizenship. Section 9 addresses voluntary acquisition of foreign citizenship. The facts, age, manner of acquisition and applicable evidence rules matter. Do not treat possession of a foreign passport as an automatic answer to every citizenship question without examining how and when foreign citizenship was acquired.

Part V — Citizenship by Registration

15. Section 5

Section 5 contains multiple categories of persons who may be registered as citizens, subject to the exact statutory conditions. Depending on the clause, the framework can cover categories involving Indian origin, marriage to an Indian citizen, minors, persons whose parents were Indian citizens, former citizens and other specified relationships/statuses.

16. Residence is category-specific

Do not copy a seven-year residence rule into every registration case. The Citizenship Rules prescribe different requirements for different Section 5 categories. For example, the Rules contain a seven-year ordinary-residence requirement for certain applications, while other categories use a twelve-month period. The exact form and rule must be matched to the Section 5 clause.

17. Marriage to an Indian citizen

Marriage can create an eligibility pathway under Section 5(1)(c), but marriage itself does not automatically confer Indian citizenship. The statutory residence/service requirement, undertaking concerning renunciation of foreign citizenship, oath and other applicable conditions must be satisfied.

18. Ordinary residence

The phrase 'ordinarily resident' is a legal condition in several citizenship provisions. It should not be reduced to a simple count of nights spent in India. Where residence is disputed, the relevant statute/rule and the factual pattern of the applicant's residence, absences, work, family and continuing connection must be examined. Courts have treated the issue as fact-sensitive.

19. Registration workflow

1. Identify the exact Section 5 clause.
2. Read the corresponding Citizenship Rule and prescribed form.

3. Confirm residence and other statutory conditions.
4. Collect evidence proving the qualifying relationship/status.
5. Prepare the required undertaking, declarations and oath.
6. Submit through the current government process.
7. Respond to verification/clarification requests.
8. Preserve the registration certificate if granted.

Part VI — Citizenship by Naturalisation

20. Section 6 and the Third Schedule

Section 6 allows the Central Government to grant a certificate of naturalisation to a person of full age and capacity who is not an illegal migrant and who satisfies the qualifications in the Third Schedule, subject to the statutory power to waive conditions for a person who has rendered distinguished service in specified fields.

21. Typical naturalisation issues

- Residence and service history.
- Good character.
- Knowledge of an Eighth Schedule language.
- Intention to reside in India or relevant connection contemplated by the Third Schedule.
- Previous citizenship and undertaking/renunciation consequences.
- Security/background verification.
- Whether a statutory relaxation or special provision is available.

22. Certificate and oath

A person granted a certificate of naturalisation becomes a citizen from the date on which the certificate is granted after taking the prescribed oath of allegiance, as provided by Section 6.

Part VII — Incorporation of Territory

23. Section 7

Section 7 deals with citizenship where territory becomes part of India. The Central Government may specify by order the persons who will become citizens and the effective date. This is not an ordinary individual application route; the relevant territorial legislation/order must first be identified.

24. Applicant takeaway

If your citizenship claim is based on territorial integration, identify the specific territorial event and notification. Do not file a generic naturalisation application merely because your family has historical residence in a territory that was incorporated into India.

Part VIII — Section 6A and Section 6B Special Frameworks

25. Section 6A — Assam Accord framework

Section 6A creates special provisions for persons covered by the Assam Accord framework. Its dates, migration categories and registration requirements are distinct from ordinary Section 5/6 applications. The Supreme Court has considered constitutional and statutory questions concerning Section 6A, including in the 2024 decision in In Re: Section 6A of the Citizenship Act, 1955.

26. Section 6B — CAA framework

Section 6B creates a special pathway for specified persons covered by the Citizenship Amendment Act framework. The statutory criteria include specified countries, communities and a cut-off date, together with special treatment under the illegal-migrant provisions and a modified naturalisation period. The applicant must satisfy every statutory condition.

27. Current 2026 administrative change for Section 6B

> MHA's 19 August 2026 rules and order changed the processing arrangement for Section 6B applications ordinarily residing in Gujarat, Rajasthan, Punjab, West Bengal, Assam (except tribal areas), Tripura (except tribal areas), and the Union Territories of Jammu and Kashmir and Ladakh. The 2026 Rules provide for electronic submission to the jurisdictional Collector, document verification and inquiry by the Collector, administration of the oath, and disposal by the Collector when the statutory conditions are satisfied. Pending Section 6B applications in the specified areas were also directed to be transferred to the Collector concerned.

Official current references:

- MHA Foreigners Division — current Acts/Rules list
- MHA — Section 6B 2024 procedure/order

Part IX — Application and Document Workflow

28. Before applying

1. Write down your citizenship history: place/date of birth, parents' citizenship, previous nationalities, passports and immigration status.
2. Identify the exact statutory route and clause.
3. Check the applicable Citizenship Rules and current MHA instructions for the relevant form.
4. Build a document matrix: legal requirement → document proving it.
5. Resolve name/date/parentage inconsistencies before submission where possible.
6. Check whether foreign documents require translation, attestation or other formalities.

29. Document matrix

Fact to prove	Examples of evidence
Identity	Passport, national identity document, other accepted identity evidence
Birth/place	Birth certificate, consular birth record, authoritative civil record
Parentage	Birth record, parent documents, marriage/parentage records
Residence	Residence records and other evidence relevant to the applicable rule
Indian citizenship of parent	Indian passport/citizenship certificate/official records
Marriage	Valid marriage certificate and supporting records
Immigration status	Visa/residence permit/registration records
Foreign citizenship	Foreign passport, naturalisation/citizenship certificate, nationality records
Language	Evidence required by the applicable naturalisation rule

30. Online submission

MHA operates online citizenship services. The exact portal workflow, forms, fees and document requirements can change. Use the current MHA citizenship portal rather than an old screenshot or third-party checklist. Keep a local copy of the submitted form, documents, acknowledgement and payment record.

31. Verification

Depending on the route, the authority may verify documents, conduct inquiries and obtain security/background reports. The applicant should be prepared to establish the facts stated in the application and respond to deficiencies. A police/security report is evidence considered within the administrative process; it is not itself the text of the Citizenship Act.

Part X — Government Processing, Delay and Decision

32. Possible processing stages

1. Submission and acknowledgement.
2. Initial scrutiny for completeness.
3. Document verification.
4. Police/security or other inquiry where applicable.
5. Clarification or deficiency request.
6. Assessment of statutory eligibility and suitability.
7. Oath of allegiance where required.
8. Grant of registration/naturalisation certificate, or rejection/other decision.

33. What to do when the file is delayed

- Check whether the application is actually pending or whether a deficiency has been raised.
- Keep evidence of every communication and status update.
- Submit a focused representation if the applicable process provides for one.
- Where appropriate, consider an RTI request for information that can lawfully be disclosed.
- If administrative inaction is substantial and legally actionable, a writ remedy may be considered with legal advice.

34. What a court may and may not do

Judicial review can examine legality, procedure, jurisdiction, arbitrariness and other public-law issues. A court does not automatically become the citizenship-granting authority simply because an applicant approaches it. The Supreme Court's decision in Union of India v. Pranav Srinivasan is a useful illustration of the limits of judicial power when the statutory eligibility route was not satisfied.

Part XI — Rights, Restrictions and OCI

35. Citizen versus foreign national versus OCI

Issue	Citizen	Foreign national	OCI Cardholder
Indian citizenship	Yes	No	No
Indian passport	Available subject to passport law	No	No
Voting	Subject to electoral law	No	No
Constitutional offices reserved to citizens	Subject to constitutional/statutory eligibility	No	No
OCI statutory privileges	Not applicable	Not applicable	Yes, subject to law/notifications
Foreigners law	Generally not applicable as a foreigner	Applies	Can apply; OCI is not citizenship

36. OCI is not dual citizenship

The Citizenship Act treats OCI as a separate statutory status. OCI cardholders are not Indian citizens and do not receive all rights reserved for citizens. The Supreme Court has described OCI as a distinct statutory status and has upheld policy distinctions between OCI holders and citizens in areas such as education.

37. OCI employment and property

OCI privileges depend on the Act, notifications and applicable law. Certain activities require special permission, and statutory restrictions apply to political rights and specified forms of employment/property. Do not use a generic statement such as 'OCI holders can work anywhere' or 'OCI holders have the same rights as NRIs' without checking the current notification.

38. OCI cancellation

Section 7D governs cancellation of OCI registration on specified grounds. The proviso requires a reasonable opportunity of being heard before an adverse cancellation order. Recent litigation has examined the interaction between Section 7D and action under foreigner-control laws.

Part XII — Renunciation, Termination and Deprivation

39. Renunciation — Section 8

A citizen of full age and capacity who is also a citizen/national of another country can renounce Indian citizenship by making the prescribed declaration. The statutory consequences extend to certain minor children, subject to the Act and the ability to resume citizenship on attaining full age under the conditions specified by law.

40. Termination — Section 9

Section 9 provides that an Indian citizen who voluntarily acquires the citizenship of another country ceases to be an Indian citizen, subject to the statutory framework. The Citizenship Rules contain evidence provisions for determining whether foreign citizenship was voluntarily acquired. The Supreme Court's decision in Izhar Ahmad Khan v. Union of India is a foundational authority on Section 9.

41. Deprivation — Section 10

Section 10 concerns deprivation by order of the Central Government for specified categories and grounds, including fraud or concealment in obtaining registration/naturalisation, specified disloyalty grounds, certain wartime conduct, certain imprisonment within five years, and specified prolonged residence abroad. The statute also contains procedural safeguards including notice and, in specified cases, an inquiry committee.

42. Passport surrender is not the same legal question as citizenship

When a person acquires foreign citizenship, the citizenship consequence under Section 9 and the passport consequences under passport law are related but distinct legal questions. Keep separate records for citizenship status, foreign nationality, Indian passport status and surrender/cancellation formalities.

Part XIII — Delays, Rejection and Legal Remedies

43. Applicant problem map

Problem	First legal question
Application delayed	What statutory/process stage is pending, and has the authority failed to decide?
Police report adverse	What exactly does the report say, and how does it relate to the statutory eligibility test?
Application rejected	What statutory provision and factual reason were relied upon?
Foreign passport issue	Was foreign citizenship voluntarily acquired, and when/how?
Marriage issue	Does the applicant satisfy the exact Section 5 category and residence conditions?
OCI cancelled	What Section 7D ground was invoked and was the hearing requirement met?
Citizenship status disputed	Which acquisition route and date-specific version of the law applies?

44. Administrative representation

A focused representation should identify the application number, legal category, relevant facts, documents already submitted, the specific pending issue and the relief requested. Avoid sending a narrative that does not identify the statutory question.

45. Writ jurisdiction

High Courts can exercise writ jurisdiction under Article 226 in appropriate cases. A mandamus claim generally requires an identifiable public duty and circumstances supporting judicial intervention. Courts do not normally substitute their own policy preference for the statutory decision-maker's role.

46. When to obtain professional advice

- Citizenship status itself is disputed.
- There is a Section 9 foreign-citizenship issue.
- There is an adverse security/police report.
- The application has been rejected on suitability/security grounds.
- Deprivation proceedings have begun.
- The case involves CAA/Section 6B litigation or a constitutional challenge.
- A writ petition is being considered.

Part XIV — Applicant Checklists, Glossary and Sources

47. One-page applicant checklist

1. Determine whether you are already a citizen.
2. Identify the exact statutory route and section.
3. Check the law applicable on the relevant date.
4. Check exclusions and foreign-citizenship issues.
5. Build a requirement-to-document matrix.
6. Use the current MHA form/process.
7. Save acknowledgement, payment record and submitted documents.
8. Respond promptly to verification/deficiency requests.
9. Record every government communication.

10 If delayed/rejected, identify the exact legal reason before choosing a remedy.

48. Glossary

Term	Working meaning
Citizen	Person recognized as an Indian citizen under the Constitution/statute
Ordinarily resident	A legal residence concept whose meaning depends on the applicable provision and facts
Illegal migrant	Defined statutory category under Section 2(1)(b), subject to statutory exceptions
Registration	A statutory route to citizenship under Section 5 or special provisions
Naturalisation	Citizenship granted by certificate under Section 6
Renunciation	Voluntary surrender of Indian citizenship under Section 8
Termination	Loss of citizenship under Section 9 following voluntary foreign citizenship
Deprivation	Government-ordered loss under Section 10 for specified grounds
OCI	Overseas Citizen of India Cardholder status; not Indian citizenship
MHA	Ministry of Home Affairs

49. Source register

- MHA Foreigners Division
- India Code — Citizenship Act, 1955
- MHA — Citizenship Rules, 2009
- MHA — OCI
- Supreme Court — Union of India v. Pranav Srinivasan, 2024 INSC 792

50. Cross-reference to PDF-2

For precedent on birth, descent, registration, foreign citizenship, OCI, administrative delay and deprivation, use the companion document: “Indian Citizenship Case Law: Applicant-Focused Precedent Handbook.”